



Master Services Agreement

iNXT BrokerVerse OOTB

Prepared by – **iorta TechNXT**

Version – **1.0**

Date – **03 October 2026**

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1. Document Control

Date	Version	Author & Business Unit Info	Reviewed By & Business Unit Info	Approved By & Business Unit Info	Change History
03 October 2026	1.0	iorta TechNXT Corp.	Legal counsel (to be completed)	To be completed	Template for discussion; subject to review by the parties' legal counsel

2. Acronyms

Acronym / Symbol	Definition / Meaning
ADR	Alternative dispute resolution
AMC	Annual Maintenance Contract
BIR	Bureau of Internal Revenue
DPA	Data Processing Agreement
EOPT	Ease of Paying Taxes Act (RA 11976)
IC	Insurance Commission
MSA	Master Services Agreement
NPC	National Privacy Commission
OOTB	Out of the box
PDRC	Philippine Dispute Resolution Center, Inc.
PHP	Philippine peso
RA	Republic Act
SEC	Securities and Exchange Commission
SLA	Service level agreement
SOW	Statement of work
TIN	Taxpayer identification number
UAT	User acceptance testing
VAT	Value-added tax

3. About this template

Template for discussion; subject to review by the parties' legal counsel.

This Master Services Agreement (the **Agreement**) is the framework contract between iorta TechNXT Corp. and a Philippine insurance broker for iNXT BrokerVerse OOTB. Each purchase is made through an Order Form, which incorporates the schedules chosen for that purchase. Text in [square brackets] is a placeholder or an option to be completed or deleted before signature. Where options are given, keep one and delete the others.

4. Parties and background

This Agreement is made on [date] at [Makati City / Taguig City], Philippines, between:

1. **iorta TechNXT Corp.**, a corporation organised under the laws of the Philippines, SEC registration no. [number], TIN [number], with principal office at [address], represented by [name], its [title], authorised under [board resolution / secretary's certificate dated date] (**iorta TechNXT**); and
2. **[Client legal name]**, a corporation organised under the laws of the Philippines, SEC registration no. [number], TIN [number], licensed by the Insurance Commission as an insurance broker under certificate of authority no. [number], with principal office at [address], represented by [name], its [title], authorised under [board resolution / secretary's certificate dated date] (the **Client**).

iorta TechNXT and the Client are each a **Party** and together the **Parties**.

Background:

- iorta TechNXT owns and licenses iNXT BrokerVerse, an insurance broking platform for non-life insurance brokers, and provides implementation, support, hosting and related services.
- The Client wishes to use iNXT BrokerVerse OOTB in its business as an insurance broker and to obtain related services from iorta TechNXT.
- The Parties wish to set out the general terms that apply to every Order Form signed under this Agreement.

5. Definitions and interpretation

5.1 Definitions

In this Agreement and in every Order Form and schedule, unless the context requires otherwise:

Term	Meaning
Acceptance	Written acceptance of a Deliverable under the acceptance procedure of the applicable SOW, or deemed acceptance under that procedure
Affiliate	An entity that controls, is controlled by or is under common control with a Party, where control means ownership of more than 50% of the voting shares
AMC	The Annual Maintenance and Support Agreement for a perpetual licence
Business Day	A day other than a Saturday, Sunday or a regular or special non-working holiday declared in Metro Manila
Change Request	A request to change the agreed scope, plan, Deliverables or the Platform, handled under the Change Request Procedure
Client Data	All data, including Personal Data, that the Client or its users enter in, upload to or generate with the Platform, and the outputs that contain it
Confidential Information	Information described in the Confidentiality clause
Deliverable	A document, configuration, environment or other item that iorta TechNXT delivers under an SOW
Documentation	The user manual, administrator guides, technical reference and other documentation of iNXT BrokerVerse OOTB that iorta TechNXT makes available
Effective Date	The date of this Agreement
Fees	The amounts payable by the Client under an Order Form
Go-Live	The first day on which the Client uses the Platform in production for its business transactions
Intellectual Property Rights	Copyright, patents, trademarks, trade names, designs, database rights, trade secrets, know-how and all similar rights anywhere in the world, registered or not
Order Form	A document signed by both Parties that refers to this Agreement and states the products, services, quantities, Fees, term and schedules that apply
Personal Data	Personal information, sensitive personal information and privileged information as defined in the Data Privacy Act of 2012 (RA 10173)
Platform	iNXT BrokerVerse OOTB, the out-of-the-box version of iNXT BrokerVerse, in object code and as a hosted service as applicable, with its Documentation, updates and releases provided under this Agreement
Services	Implementation, support, maintenance, hosting, training, change requests and any other services stated in an Order Form
SOW	A statement of work that forms part of an Order Form
Users	Named individuals authorised by the Client to use the Platform, each with a personal sign-in

5.2 Interpretation

- Headings are for convenience only. The singular includes the plural and the reverse.
- "Including" means "including without limitation".

3. A reference to a law includes its implementing rules and regulations and any amendment or replacement in force.
4. A reference to a clause by name refers to the clause of that name in this Agreement.
5. Amounts are in Philippine pesos and exclude VAT unless stated.

6. Services and responsibilities

6.1 Structure of the agreement

6.1.1 Order Forms

1. The Client buys products and Services by signing an Order Form. Each Order Form is a separate contract that incorporates this Agreement and the schedules named in it.
2. The schedules available under this Agreement are: the Perpetual Software Licence Agreement, the Software Subscription Agreement, the Implementation Statement of Work, the Change Request Procedure, the Annual Maintenance and Support Agreement and Service Level Agreement, the Hosting and Infrastructure Services Agreement and the Data Processing Agreement. The following annexes apply with them: the Service Catalogue and Rate Annex, the Customer Responsibilities and RACI Annex and the Exit and Transition Plan. The Source Code Escrow Agreement is an optional three-party agreement under the Perpetual Software Licence Agreement. The UAT Sign-off, Go-live Acceptance and Hypercare Exit certificates are the forms used under the Implementation Statement of Work.
3. An Order Form binds the Parties only when signed by authorised representatives of both.

6.1.2 Order of precedence

If documents conflict, the following order applies, the first prevailing: (a) the Data Processing Agreement on matters of Personal Data; (b) the Order Form, but only for the specific purchase and only where it expressly states that it overrides this Agreement; (c) this Agreement; (d) the schedules named in the Order Form, with their annexes; (e) the SOW; (f) the Documentation. Rates in the Order Form prevail over the Service Catalogue and Rate Annex. A signed acceptance certificate or Change Request form records a fact or an approval and does not amend this Agreement.

6.1.3 Affiliates

An Affiliate of the Client may sign an Order Form under this Agreement with the written consent of iorta TechNXT. The Affiliate is then the Client for that Order Form.

6.2 Scope of services

6.2.1 Scope

1. iorta TechNXT provides the Platform and the Services described in each Order Form and its schedules.
2. The Platform is provided as the OOTB version: the delivered screens, workflows, reports, printed documents and integrations, configured with the Client's settings and master data. Changes to the Platform are Change Requests.

3. iorta TechNXT performs the Services with reasonable skill and care, by suitably qualified personnel, in line with good industry practice.

6.2.2 Personnel

1. Each Party names a project manager or account manager as its main contact in the Order Form.
2. iorta TechNXT may replace its personnel with persons of similar skill and informs the Client in advance where the person is named in the SOW.
3. While on the Client's premises, iorta TechNXT personnel follow the Client's reasonable site, security and conduct rules notified in advance.

6.2.3 Subcontractors

iorta TechNXT may use subcontractors, including cloud and hosting providers, to perform the Services. iorta TechNXT remains responsible for its subcontractors. Sub-processors of Personal Data are governed by the Data Processing Agreement.

6.2.4 Change control

Any change to the scope, plan, Deliverables or Fees of an Order Form is made through the Change Request Procedure. No change binds a Party until a Change Request or an amendment is signed by both Parties.

6.3 Client responsibilities

The Client shall:

1. name a project manager, key users and an accounting manager with the authority and time stated in the SOW;
2. provide complete and accurate information, decisions and data in the formats and by the dates in the SOW;
3. provide access to its premises, systems, third-party providers and personnel as reasonably needed;
4. obtain and keep the third-party contracts it owns, such as e-mail, payment gateway and bank arrangements;
5. use the Platform in line with the Documentation, applicable law and the rules of the Insurance Commission, the Bureau of Internal Revenue and the National Privacy Commission;
6. remain responsible for its regulatory filings, registrations, tax returns, reports to the Insurance Commission, notifications to the National Privacy Commission and its business decisions, including those made with the help of the Platform;
7. keep its sign-in credentials confidential and manage its Users through its own joiner, mover and leaver process;
8. review the delivered tax codes, rates, BIR working papers and settings with its tax adviser and compliance officer before Go-Live.

iorta TechNXT is not liable for delay or failure caused by the Client not meeting these responsibilities. In that case the timeline moves by the time lost and iorta TechNXT

may charge the extra effort at the day rates of the Order Form, after giving written notice.

7. Fees and taxes

7.1 Fees and payment

7.1.1 Fees

1. The Client pays the Fees in each Order Form. Fees are stated in Philippine pesos and exclude VAT.
2. Recurring Fees for the subscription, the AMC and the 24x7 Severity 1 support increase by 5% at each anniversary of their start date, unless the Order Form states otherwise. Hosting fees, including additional hosted environments, do not increase yearly; they change only as stated in the Pass-through and adjustments clause of the Hosting and Infrastructure Services Agreement.
3. Day rates for Change Requests and optional services are fixed for 12 months from the date of the Order Form and may then be reviewed once a year with 60 days' written notice.

7.1.2 Invoicing and payment

1. iorta TechNXT invoices on the milestones and periods stated in the Order Form.
2. The Client pays each undisputed invoice within 30 days of the invoice date, by bank transfer to the account stated on the invoice, without set-off.
3. The Client notifies any dispute in writing within 15 days of the invoice date, with reasons, and pays the undisputed part on time. The Parties resolve the dispute under the Dispute resolution clause.
4. Late amounts bear interest at [1% a month / the legal rate of interest] from the due date until payment.
5. If an undisputed amount remains unpaid 60 days after the due date, iorta TechNXT may, after 10 Business Days' written notice, suspend the affected subscription, hosting or support Services until payment. Suspension does not reduce the Fees due.
6. Bank charges of the Client's bank are for the Client's account.

7.2 Taxes

7.2.1 VAT

All Fees exclude value-added tax. iorta TechNXT adds VAT at the rate in force (currently 12%) to each invoice and issues a VAT invoice in the form required by the National Internal Revenue Code as amended, including by RA 11976 (Ease of Paying Taxes Act).

7.2.2 Withholding taxes

1. Where the Client is required by law to withhold creditable withholding tax on a payment to iorta TechNXT, the Client withholds it at the rate that applies to the payment and to iorta TechNXT's status, remits it to the Bureau of Internal Revenue on time, and gives iorta TechNXT a BIR Form 2307 (Certificate of

Creditable Tax Withheld at Source) for each quarter within the period required by the regulations, and in any case within 20 days after the end of the quarter.

2. Withholding does not reduce the invoice price. If the Client does not deliver a BIR Form 2307 for an amount withheld, the Client pays that amount to iorta TechNXT on demand.
3. The tax treatment of the perpetual licence fee (as a sale of software or as a royalty) is confirmed by both Parties' tax advisers before the Order Form is signed, and stated in the Order Form.

7.2.3 Other taxes

Each Party bears its own income tax. Documentary stamp tax on this Agreement, if any, is for the account of [the Client / both Parties in equal shares]. Taxes that a new law imposes on the Services after the Effective Date are added to the Fees.

8. Term and termination

8.1 Term

This Agreement starts on the Effective Date and continues until terminated under this clause. Each Order Form has the term stated in it. Termination of this Agreement does not end an Order Form then in force, which continues to be governed by this Agreement until it ends.

8.2 Termination for cause

A Party may terminate this Agreement or an affected Order Form by written notice if the other Party:

1. commits a material breach and does not cure it within 30 days of a written notice describing the breach (10 Business Days for non-payment);
2. becomes insolvent, makes an assignment for the benefit of creditors, has a receiver or rehabilitation receiver appointed, or is the subject of insolvency, rehabilitation or liquidation proceedings under RA 10142 (Financial Rehabilitation and Insolvency Act) that are not dismissed within 60 days; or
3. has its licence or registration needed to perform this Agreement revoked, in the case of the Client its certificate of authority as an insurance broker.

8.3 Termination for convenience

[Option A: Neither Party may terminate an Order Form for convenience during its committed term.] [Option B: The Client may terminate an Order Form for convenience on 90 days' written notice, paying the Fees for Services performed up to termination, non-cancellable third-party costs and an early termination fee equal to [all / 50% of] the recurring Fees for the remainder of the committed term.]

8.4 Effect of termination

1. The Client pays all Fees due up to the date of termination. Fees paid in advance for a period after termination for iorta TechNXT's uncured breach are refunded pro rata.
2. Each Party returns or destroys the other's Confidential Information, except copies that law or a retention policy requires it to keep.
3. Client Data is returned and deleted as stated in the Data Processing Agreement, the subscription or hosting schedule and the Exit and Transition Plan. iorta TechNXT provides an export of the Client Data in a standard format (CSV, XLSX or a PostgreSQL dump) within 30 days of the Client's request made within 60 days of termination.
4. Transition assistance requested by the Client is provided under the Exit and Transition Plan, at the day rates of the Order Form beyond any assistance that the Plan includes.
5. The clauses on Fees and payment, Taxes, Intellectual property, Confidentiality, Data protection, Limitation of liability, Indemnities, Non-

solicitation, Dispute resolution, Governing law and every clause that by its nature should survive, survive termination.

9. Rights in the platform and in data

9.1 Intellectual property

9.1.1 Platform

1. iorta TechNXT and its licensors own all Intellectual Property Rights in the Platform, the Documentation, the upload templates, configurations that are generic to the Platform, tools, methods and know-how, and all improvements, modifications and derivative works of them, whoever makes them, including those made under a Change Request.
2. Nothing in this Agreement transfers any of those rights to the Client. The Client receives only the licence or right of use stated in the applicable schedule.
3. The Client shall not remove proprietary notices, reverse engineer, decompile or disassemble the Platform, except to the extent that RA 8293 (Intellectual Property Code) allows it despite this restriction.

9.1.2 Client Data

1. The Client owns all Client Data. iorta TechNXT acquires no right in Client Data except the right to process it to perform the Services, under the Data Processing Agreement.
2. The Client's own trademarks, letterheads, policy wordings, forms and content remain the property of the Client. The Client grants iorta TechNXT a licence to use them only to perform the Services.

9.1.3 Feedback and statistics

iorta TechNXT may use suggestions from the Client to improve the Platform without obligation. iorta TechNXT may use technical and usage statistics that do not identify the Client, its clients or any individual, to operate and improve the Platform.

9.2 Licence grant

The right of the Client to use the Platform is granted in, and limited by, the Perpetual Software Licence Agreement or the Software Subscription Agreement named in the Order Form, for the number of Users, environments and term stated there. Use beyond that scope requires an additional Order Form.

9.3 Confidentiality

9.3.1 Confidential Information

Confidential Information means all information disclosed by a Party (the discloser) to the other (the recipient), in any form, that is marked as confidential or would be understood to be confidential, including the Platform, its source code, prices and discounts, business plans, Client Data, the clients and insurers of the Client, and the terms of this Agreement.

9.3.2 Obligations

The recipient shall:

1. use the Confidential Information only to perform or receive the Services;
2. disclose it only to its directors, officers, employees, Affiliates, professional advisers and subcontractors who need to know it and who are bound by confidentiality duties no less protective than this clause;
3. protect it with at least the care it uses for its own confidential information, and no less than reasonable care.

9.3.3 Exceptions

The obligations do not apply to information that: (a) is or becomes public without breach of this Agreement; (b) was lawfully known to the recipient before disclosure; (c) is received from a third party without a duty of confidence; or (d) is independently developed without use of the Confidential Information. A recipient may disclose Confidential Information when required by law, a court, the Insurance Commission, the Bureau of Internal Revenue, the National Privacy Commission or another regulator, after giving the discloser prompt notice where lawful, and only to the extent required.

9.3.4 Duration

These obligations last during this Agreement and for 5 years after its termination, and for trade secrets and source code for as long as they remain trade secrets. Personal Data remains protected as stated in the Data Processing Agreement without time limit.

9.4 Data protection

1. Each Party complies with the Data Privacy Act of 2012 (RA 10173), its Implementing Rules and Regulations and the circulars and issuances of the National Privacy Commission.
2. For Personal Data in Client Data, the Client is the personal information controller and iorta TechNXT is the personal information processor. The Parties sign the Data Processing Agreement, which forms part of this Agreement and of each Order Form under which iorta TechNXT processes Personal Data.
3. The Client is responsible for the lawful basis of the processing, its privacy notices, consents, registration of its data processing systems and data protection officer with the National Privacy Commission where required, answers to data subjects and notifications of personal data breaches.
4. iorta TechNXT processes Personal Data only on the Client's documented instructions, keeps it secure, notifies the Client of a personal data breach without undue delay and within the period in the Data Processing Agreement, and assists the Client as stated there.
5. Where the Platform is hosted outside the Philippines, the Client decides on and documents the transfer as required by section 21 of the Data Privacy Act. The hosting location is stated in the Order Form.

10. Warranties, liability and indemnities

10.1 Warranties

10.1.1 Mutual warranties

Each Party warrants that it is duly organised and validly existing, that it has the power and authority to sign and perform this Agreement, and that its signatory is duly authorised.

10.1.2 iorta TechNXT warranties

iorta TechNXT warrants that:

1. the Services will be performed with reasonable skill and care, by qualified personnel, in line with good industry practice;
2. for 12 months from Go-Live (the warranty period) in the case of a perpetual licence, and for the subscription term in the case of a subscription, the Platform will perform materially in line with its Documentation;
3. it has the right to grant the licence or right of use in the applicable schedule;
4. it will use industry-standard measures to keep the Platform free of viruses and malicious code at delivery.

10.1.3 Remedies

If the Platform does not meet the warranty in point 2 above, iorta TechNXT will, at its option and cost, correct the defect, provide a workaround or, if it cannot do either in a reasonable time, the Client may terminate the affected Order Form and receive a refund of the licence or subscription Fees paid for the period of non-conformity. This is the Client's sole remedy for breach of that warranty.

10.1.4 Exclusions

The warranties do not apply to defects caused by: use not in line with the Documentation; changes not made by iorta TechNXT; the Client's data, systems, network or third-party products; or use of a release more than two planned releases behind the current one.

10.1.5 Disclaimer

Except as stated in this Agreement, and to the extent permitted by law, iorta TechNXT gives no other warranty, express or implied, including any warranty that the Platform will be error-free or uninterrupted, or that it meets requirements that are not in the Documentation or the SOW. The Platform supports the Client's compliance with the laws and regulations that apply to it but does not replace the Client's own legal, tax, actuarial and compliance judgement.

10.2 Limitation of liability

1. Neither Party is liable for loss of profit, revenue, business, goodwill or anticipated savings, or for indirect, incidental, special or consequential loss, however arising, even if advised of its possibility.

2. The total liability of each Party for all claims arising out of or in connection with an Order Form, in any year, is limited to the Fees paid and payable under that Order Form in the 12 months before the event giving rise to the claim.
3. [Option: For breach of the Data protection clause or the Data Processing Agreement, the cap in point 2 is [two times / three times] that amount.]
4. Points 1 and 2 do not limit: (a) the Client's duty to pay the Fees; (b) liability under the Indemnities clause for infringement of Intellectual Property Rights; (c) liability for breach of the Confidentiality clause; (d) liability for fraud, gross negligence or wilful misconduct; or (e) any liability that cannot be limited under Philippine law, including under Article 1171 of the Civil Code.
5. Each Party must take reasonable steps to mitigate its loss.

10.3 Indemnities

10.3.1 Intellectual property indemnity

1. iorta TechNXT shall defend the Client against any third-party claim that the Platform, used in line with this Agreement, infringes that third party's Intellectual Property Rights in the Philippines, and shall pay the damages and costs finally awarded or agreed in settlement.
2. If such a claim is made or likely, iorta TechNXT may, at its option and cost, obtain the right for the Client to continue using the Platform, modify or replace it so that it no longer infringes without material loss of function, or, if neither is reasonably possible, terminate the affected Order Form and refund the Fees paid for the remaining term (for a perpetual licence, the licence fee less one fifth for each year since Go-Live).
3. iorta TechNXT has no obligation for claims arising from changes not made by iorta TechNXT, combination with items not supplied by iorta TechNXT, Client Data or content, or use after iorta TechNXT has provided a non-infringing alternative.

10.3.2 Client indemnity

The Client shall defend iorta TechNXT against any third-party claim arising from Client Data, the Client's use of the Platform in breach of law or of this Agreement, or the Client's dealings with its own clients, insurers and regulators, and shall pay the damages and costs finally awarded or agreed in settlement.

10.3.3 Procedure

The indemnified Party notifies the claim promptly in writing, gives the indemnifying Party sole control of the defence and settlement (no settlement may admit fault of the indemnified Party without its consent), and provides reasonable cooperation at the indemnifying Party's cost.

11. Other terms

11.1 Force majeure

1. A Party is not liable for delay or failure to perform caused by an event beyond its reasonable control that it could not have foreseen or, if foreseeable, could not have avoided, including natural disasters, typhoons, earthquakes, floods, fire, epidemics, war, civil unrest, acts of government, widespread power or telecommunications failure and failures of the public internet, in line with Article 1174 of the Civil Code.
2. The affected Party notifies the other promptly, describes the event and its likely effect, and uses reasonable efforts to reduce its effect and to resume performance. iorta TechNXT applies its disaster recovery arrangements in the hosting schedule where they apply.
3. Force majeure does not excuse payment obligations for Services already performed.
4. If the event continues for more than 60 days, either Party may terminate the affected Order Form by written notice, with payment for Services performed up to termination.

11.2 Non-solicitation

During the term of an Order Form and for 12 months after it ends, neither Party shall, directly or indirectly, solicit for employment or engage any employee of the other Party who was involved in the Services, without the other Party's written consent. General advertisements not aimed at those employees are not a breach. If a Party breaches this clause, it pays the other Party, as liquidated damages and not as a penalty, an amount equal to [six months'] gross salary of the person concerned at the time of leaving.

11.3 Assignment and subcontracting

1. Neither Party may assign or transfer this Agreement or an Order Form without the other Party's written consent, which shall not be unreasonably withheld.
2. iorta TechNXT may assign this Agreement to an Affiliate or to a successor of its business on written notice, provided the assignee assumes all its obligations.
3. Subcontracting is governed by the Subcontractors part of the Scope of services clause.

11.4 Dispute resolution

11.4.1 Negotiation

A Party that has a dispute arising out of or in connection with this Agreement notifies the other in writing. The project managers meet within 10 Business Days. If they cannot resolve it within 15 Business Days of the notice, the dispute is referred to a senior executive of each Party (for iorta TechNXT its [CEO]; for the Client its [President]), who meet within a further 15 Business Days.

11.4.2 Mediation

If the senior executives do not resolve the dispute within 30 days of the referral, either Party may refer it to mediation administered by [the Philippine Dispute Resolution Center, Inc. (PDRC) under its mediation rules / a mediator agreed by the Parties], in line with RA 9285 (Alternative Dispute Resolution Act of 2004). The mediation takes place in [Makati City / Taguig City], in English. Each Party bears its own costs and half of the mediator's fees.

11.4.3 Final resolution: choose one option

[Option A: Arbitration. If the dispute is not settled within 60 days of the start of mediation, it shall be finally resolved by arbitration administered by the Philippine Dispute Resolution Center, Inc. under its arbitration rules in force at the time. The seat of arbitration is [Makati City], Philippines. The tribunal consists of [one arbitrator / three arbitrators]. The language is English. The award is final and binding and may be enforced in any competent court under RA 9285 and RA 876 (Arbitration Law).]

[Option B: Courts. If the dispute is not settled within 60 days of the start of mediation, it shall be submitted to the proper courts of [Makati City / Taguig City], Philippines, to the exclusion of all other venues.]

11.4.4 Interim relief and continued performance

Nothing in this clause prevents a Party from seeking urgent interim relief from a competent court to protect its Confidential Information or Intellectual Property Rights. Unless the Agreement is terminated, the Parties continue to perform their obligations during the dispute, and iorta TechNXT does not suspend Services for an amount the Client disputes in good faith under the Fees and payment clause.

11.5 Governing law

This Agreement and every Order Form are governed by and construed in accordance with the laws of the Republic of the Philippines.

11.6 Notices

1. Notices under this Agreement are in writing in English and are delivered by hand, by courier, or by e-mail to the addresses below (or another address notified in writing).
2. A notice is received: on delivery if by hand or courier; on the next Business Day after sending if by e-mail, unless the sender receives a delivery failure message. Notices of breach, termination or a dispute sent by e-mail are also sent by courier.

Party	Address	E-mail	Attention
iorta TechNXT Corp.	[address]	[e-mail]	[name, title]
[Client legal name]	[address]	[e-mail]	[name, title]

11.7 General

1. **Entire agreement.** This Agreement, the Order Forms and their schedules are the entire agreement on their subject matter and replace all earlier proposals,

representations and understandings. Terms printed on purchase orders of the Client do not apply.

2. **Amendment.** Changes are valid only if in writing and signed by authorised representatives of both Parties.
3. **Waiver.** A failure or delay in exercising a right is not a waiver of it.
4. **Severability.** If a provision is invalid or unenforceable, the rest of this Agreement remains in force and the Parties replace the provision with a valid one closest to its intent.
5. **Independent contractors.** The Parties are independent contractors. Nothing creates a partnership, joint venture, agency or employment relationship. iorta TechNXT is solely responsible for the wages, benefits and statutory contributions of its personnel.
6. **Electronic signatures and counterparts.** This Agreement and any Order Form may be signed in counterparts and by electronic signature, which the Parties accept as valid under RA 8792 (Electronic Commerce Act of 2000).
7. **Publicity.** Neither Party uses the other's name or logo in publicity without written consent, except that iorta TechNXT may name the Client as a customer [if the Order Form includes a reference clause].
8. **Anti-bribery.** Each Party complies with applicable anti-corruption laws, including RA 3019 (Anti-Graft and Corrupt Practices Act) where relevant, and does not offer or accept any improper payment in connection with this Agreement.
9. **Anti-money laundering.** Each Party complies with RA 9160 (Anti-Money Laundering Act), as amended, in its own business. The Platform supports but does not perform the Client's AML obligations.
10. **Costs.** Each Party bears its own costs of negotiating and signing this Agreement.

12. Signatures

12.1 Signature blocks

Signed by the authorised representatives of the Parties on the date first written above.

For iorta TechNXT Corp.	For [Client legal name]
Signature: _____	Signature: _____
Name: [name]	Name: [name]
Title: [title]	Title: [title]
Date: [date]	Date: [date]
Witness: _____	Witness: _____

12.2 Acknowledgment

[Optional: notarial acknowledgment where the Parties choose to notarise this Agreement.]

REPUBLIC OF THE PHILIPPINES)

[CITY OF MAKATI / TAGUIG]) S.S.

Before me, a Notary Public for and in [city], this [date], personally appeared:

Name	Competent evidence of identity	Date and place issued
[name], for iorta TechNXT Corp.	[ID type and number]	[date, place]
[name], for [Client legal name]	[ID type and number]	[date, place]

known to me to be the same persons who executed the foregoing Master Services Agreement, consisting of [number] pages including this page, and who acknowledged that it is their free and voluntary act and deed and that of the corporations they represent.

WITNESS MY HAND AND SEAL on the date and at the place first written above.

Notary Public. Doc. No. []; Page No. []; Book No. []; Series of [year].

13. Annex A: schedules and forms

Document	Use
Order Form	Every purchase: products, model, Users, term, Fees, hosting, start date, schedules
Proposal Acceptance and Letter of Award	Client's acceptance of a proposal before the Order Form is signed
Perpetual Software Licence Agreement	Perpetual licence model
Software Subscription Agreement	Subscription model
Implementation Statement of Work	One-time implementation or onboarding
Change Request Procedure and Form	Changes to scope, plan, Deliverables or the Platform
Annual Maintenance and Support Agreement and SLA	AMC for the perpetual model; service levels for both models
Hosting and Infrastructure Services Agreement	When iorta TechNXT hosts the Platform
Data Processing Agreement	Whenever iorta TechNXT processes Personal Data
Service Catalogue and Rate Annex	Every Order Form: services, units, rates and out-of-scope list
Customer Responsibilities and RACI Annex	With the SOW and the Annual Maintenance and Support Agreement
Exit and Transition Plan	Subscription and hosting: data return, deletion and transition
Source Code Escrow Agreement	Optional, perpetual licence only; three parties
UAT Sign-off and Go-live Acceptance Certificates	UAT sign-off and go-live under the SOW
Hypercare Exit and Handover to Support Certificate	End of hypercare, start of support
Mutual Non-Disclosure Agreement	Before demonstrations and discovery
Contract Pack Index and Cover Letter	Which documents apply, signing order and checklists

14. Document Sign-Off

Serial Number	Description	Owner	Status
1	Review and completion by the parties' legal counsel before signature	iorta TechNXT	Closed

Sign Off Date	Signature	Approved By	Department & Project Role



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